

STATE OF NEW YORK

9125--A

2025-2026 Regular Sessions

IN ASSEMBLY

September 26, 2025

Introduced by M. of A. BORES -- read once and referred to the Committee on Racing and Wagering -- recommitted to the Committee on Racing and Wagering in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the racing, pari-mutuel wagering and breeding law, in relation to prohibiting mobile sports wagering operators and mobile sports wagering platforms from limiting the size and frequency of deposits or wagers of authorized sports bettors on an individual basis or banning authorized sports bettors on an individual basis

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "fair play
2 act".

3 § 2. Subdivision 1367-a of the racing, pari-mutuel wagering and breed-
4 ing law is amended by adding a new subdivision 4-a to read as follows:

5 4-a. (a) Mobile sports wagering operators and mobile sports wagering
6 platforms shall be prohibited from limiting the size or frequency of
7 deposits or wagers of authorized sports bettors because such bettor:

8 (i) obtains financial benefit as a result of their wagering activity;
9 or

10 (ii) due to such bettor's wagering activity, unless such wagering
11 activity:

12 (A) constitutes suspicious wagering activity, as defined in paragraph
13 (bb) of subdivision one of section thirteen hundred sixty-seven of this
14 title; or

15 (B) indicates that such bettor has a gambling disorder, as defined in
16 article one of the mental hygiene law.

17 (b) When an authorized sports bettor is limited or banned, the mobile
18 sports wagering operator or mobile sports wagering platform shall, with-
19 in twenty-four hours of issuing such limit or ban, provide electronic

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 written notice to such authorized sports bettor. Such written notice
2 shall include, but need not be limited to:

3 (i) the specific manner in which such authorized sports bettor is
4 being restricted;

5 (ii) the duration of such restriction;

6 (iii) an explanation of why the authorized sports bettor is being
7 restricted, including specifying if such restriction is for suspicious
8 wagering activity or problem gambling; and

9 (iv) a link to the problem gambling services webpage maintained by the
10 office of addiction services and supports if such restriction is issued
11 to limit problem gambling.

12 § 3. This act shall take effect on the one hundred eightieth day after
13 it shall have become a law.